

Statement of Work (DRAFT)

Hazardous Waste Removal

1. GENERAL DESCRIPTION OF WORK:

The contractor will provide recycling and disposal services for hazardous, non-hazardous, asbestos, biological, lab packs, radiological, Drug Enforcement Administration (DEA) controlled substance, and universal wastes for VA Central California Health Care System (VACCHCS). The contractor shall provide On-Site Services (OSSs) at regular intervals, at minimum monthly, to VACCHCS to include inspections and waste pick-up services at 19 Satellite Accumulation Areas (SAA), the Main/Central Accumulation Areas (MAA/CAA) and three Community Based Outpatient Clinics (CBOC) as needed.

The contractor shall have the ability to provide the following training to a maximum of fifty (50) VA employees twice a year at VACCHCS:

1. Annual hazardous waste
2. Universal waste
3. Department of Transportation (DOT)
4. Annual First Responder Operations Level training as specified under 29 CFR 1910.120(q)(6)(ii) for employees that are required to be trained to respond in a defensive fashion without actually trying to stop the release.
5. Hazard Materials Technician (29 CFR 1910.120(q)(iii)) training which would require a 24-hour initial training and annual refresher for up to 50 employees.

The contractor will provide emergency spill response services within the premises of the participating VACCHCS. The contractor shall be qualified to carry out a wide range of hazardous chemicals, non-hazardous chemicals, universal waste, radiological wastes, biomedical and DEA drug waste emergency spill response services; manpower to transport hazardous waste in relation to a spill response to a CAA/MAA/SAA or to a Treatment Storage and Disposal Facility (TSDF), on an as needed basis.

Services will be provided during the four-year Indefinite Delivery Indefinite Quantity (IDIQ). Periods of Performance:

Ordering Period 1: 06/17/2026-06/16/2027
Ordering Period 2: 06/17/2027-06/16/2028
Ordering Period 3: 06/17/2028-06/16/2029
Ordering Period 2: 06/17/2029-06/16/2030
Ordering Period 2: 06/17/2030-06/16/2031

Fixed price task orders will be issued under this IDIQ for each medical center over the course of the four years.

LOCATIONS : CAA/MAA VACCHCS Main facility campus located at 2615 E. Clinton Ave, Fresno CA 93703
See Attachment 1 for list of SAA locations.

2. REQUIREMENTS AND SCOPE:

The Department of Veterans Affairs, Central California Health Care System intends to award a IDIQ to a qualified vendor with the capability and capacity to provide hazardous, non-hazardous, biological, asbestos, lab pack, radiological, DEA controlled substances, and universal waste disposal services, OSSs, hazardous and universal waste training, DOT training, Hazardous Waste Operations and Emergency Response (HAZWOPER) training and emergency spill response services at VACCHCS in accordance with current federal, state and local regulations. Services shall include all labor, materials, tools, equipment, analysis, travel, transportation, documentation, waste treatment, disposal and support services required

to categorize, package, transport, document and dispose of hazardous, non-hazardous, biological, asbestos, radiological, DEA controlled substances and universal wastes from all VISN 21 facilities. The Contractor and the Contracting Officer's Representative (COR) from VACCHCS will arrange for routine (non-emergency) services for each facility based upon volume. OSSs may occur weekly, bi-monthly, monthly, quarterly or annually based on rate of generation. The successful offeror must possess the necessary technical expertise and resources required by this solicitation in order to be considered for contract award.

3. TRAINING:

This contract shall provide, as necessary, annual Resource Conservation and Recovery Act (RCRA), HAZWOPER and DOT initial and refresher trainings for all employees who handle hazardous, biomedical, radiological and/or universal wastes. Annual First Responder Operations Level training is specified under 29CFR 1910.120(q)(6)(ii) for employees that are required to be trained to respond in a defensive fashion without actually trying to stop the release. Upon request, contractor will provide onsite HAZWOPER training and/or assistance in developing a practical field exercise. The successful offeror must also be able to provide Hazardous Materials Technician (29CFR 1910.120(q)(iii)) training which would require a 24-hour initial training and annual refresher for up to 50 employees. The successful offeror shall work with VACCHCS in developing a training plan that meets the needs of the facility. At the discretion of the facility, training materials will be developed by the contractor to assist the GEMS Program Managers in implementing training on an annual basis. The facility is not required to utilize the contractor to complete the actual training on site.

The hazardous waste training program, at a facility that generates hazardous waste in SAAs, will include training employees who have hazardous waste management responsibilities at each medical center and sign federal uniform hazardous waste manifests or are authorized to serve as their respective facility's hazardous waste coordinator. Training will incorporate state specific regulations and include storage, manifest completion, lab packing, transportation, disposal, records management, emergency responsibilities, Land Disposal Restrictions (LDRs) and other pertinent topics. The training will also include DOT Hazardous Materials training that meet the requirements of 49 C.F.R. §172.704(a), (c) and (d).

*Offerors shall include training qualifications and a training outline that covers all areas referred to above.

4. MEETINGS:

The successful offeror will be required to attend quarterly meetings with the VACCHCS Green Environmental Management System (GEMS) Program Manager to address contract performance. These meetings may take place virtually or one site at VACCHCS. Should contract deficiencies arise, meetings may be held on a more frequent basis to resolve any/all issues.

5. EMERGENCY RESPONSE:

5.1 The Contractor shall furnish the transportation, labor, supervision, supplies, materials, equipment (to include but not limited to the following: suction trucks, pumping equipment, container trucks, portable scales for weighing drums and bulk containers, sampling equipment and cleaning equipment, incidental spill cleanup supplies, forklifts and waste collection containers (drums, carboys, buckets, fiber drum, etc...), waste manifests, required permits (to include an active authorized U.S. EPA identification number and all relevant Department of Transportation permits), insurance and authorization to perform the work in accordance with (IAW) the terms and conditions described herein prior to transport and/or disposal of subject waste.

5.2 The Contractor shall have the capability to provide emergency response services twenty-four (24) hours per day, seven (7) days per week, for spills of hazardous materials and/or wastes, radiological wastes, biomedical and universal wastes and DEA drug waste as described in Section 1: General Description of Work. The contractor shall respond within two (2) hours to spill incidents at any of the medical centers or CBOCs listed herein to conduct spill mitigation activities, neutralize spilled products, provide expert advice concerning products and their potential impacts on people and the environment and if necessary to conduct decontamination efforts. Response shall include spill cleanup at each medical center or CBOC, the handling and disposal of products or product residuals generated as a result of a spill

and the preparation of required documentation on behalf of the facility. The contractor shall also possess the capability to respond within the emergency response timeframes to assess any potentially unstable/reactive hazardous substance identified and to effect on-site remote opening and stabilization as appropriate within twenty-four (24) hours.

5.3 If Contractor fails to respond within two (2) hours at VACCHCS herein, VA reserves the right to obtain the required service from another source capable of full performance of these contract requirements, and to charge the contractor with any excess cost which may result there from. The contractor must be able to identify spilled product, conduct spill mitigation activities (e.g., containment, diversion from storm drains), neutralize spilled product, provide expert advice concerning products and their potential impacts, undertake spill cleanup activities, handle and dispose of spilled product and residuals, and prepare appropriate documentation on behalf of the facility (this includes having the ability to collect, analyze, prepare, package, label, remove, transport, store, treat and dispose of any hazardous waste generated as a result of an accidental release to the environment). The contractor will provide their spill capabilities, past experiences, and spill procedures for integration into facility level SPCC or ICP contingency plans. The contractor will provide their billing procedure that would be used for spill and emergency response activity. Pricing for emergency services rendered will be provided to the medical center within twenty-four (24) hours of emergency response incidents.

6. RECORDKEEPING/REPORTS:

Contractor shall have a centralized waste tracking system that can be used via the internet and that can export all hazardous waste data to the VA via a Microsoft Excel spreadsheet, Microsoft Access database, or other similar program approved by the VACCHCS GEMS Program Manager. The centralized tracking system will include; a database for all waste characterizations and determinations, a scanned or electronic copy of each hazardous waste manifest and bill of lading for each hazardous waste and universal wastes, methods of final (end) disposal, sites and methods of final disposal; monthly, quarterly and annual waste generation reports by facility for each waste stream; training records; detailed invoice for each shipment; anticipated and actual weights and costs of each shipment; and a tracking system for hazardous materials spills.

7. INSPECTIONS:

The contract will include weekly/monthly inspections and movement of wastes from all satellite accumulation areas at the facilities that request these services, from the list provided in Attachment 1 of this contract. The satellite accumulation areas will be inspected according to the guidelines provided by the State of California. To include ensuring all hazardous waste bins are stored and labeled in accordance with State of California requirements. The contractor will supply labels for hazardous waste bins stored both the SAA and MAA. The inspection checklist will be made available electronically to the facility, and to the VACCHCS GEMS Program Manager. The program must be capable of generating reports to identify problem areas by facility, satellite accumulation area, by date or other fields as deemed appropriate. Upon identifying satellite accumulation area deficiencies, the contractor will note the deficiency in the inspection report, correct the deficiencies and note in the inspection report corrections that were implemented. The Contractor will also report to VACCHCS any of the satellite accumulation areas they were not able to inspect.

8. WASTE MINIMIZATION

VACCHCS is interested in aggressively pursuing waste minimization opportunities, improving its existing waste management processes and incorporating best practices from the waste management industry. As part of the submittal process, the contractor will provide examples of waste minimization practices or programs that the contractor has developed for other facilities. Specific examples from healthcare or research facilities are preferred. The contractor shall perform audits as requested at each VAMC for waste minimization or cost savings opportunities.

The Contractor will prepare a Medical Center Waste Management Operations Audit (Henceforth, referred to as Audit Report) to include a review of current procedures and processes. Requested audits may include but are not limited to the following waste streams, potential enhancements to recycling and/or green product substitution, and improvements to the waste management or consolidation practices tailored to each of the medical centers' needs; Solid Waste, Food-Related Waste, HIPAA Waste, Biomedical Waste, RCRA and State Hazardous waste, Universal Waste, Electronic Waste and

Pharmaceutical wastes. The goal of the Audit is to illustrate how the program is currently being implemented, where waste is generated, how it moves through the facility, how it is generated, its composition and where there are opportunities for waste reduction or solid waste cost improvement opportunities. Factors such as labor costs, size and space issues of the facilities, recycling history, and the details of the individual medical center's current disposal services and costs will be determined. The contractor shall provide requested waste minimization opportunities in writing to the VACCHCS as requested.

The Audits shall include a cost baseline of waste management costs for VACCHCS. The cost baseline number should represent an annual average and should not include any costs that are not expected to occur again in the future (such as one-time and nonrecurring costs). The baseline will be set for the term of the agreement and any net savings will be related to the baseline. The baseline must be approved by the VACCHCS before cost savings can be calculated or projects initiated and should include all existing costs that can be quantified such as labor, equipment, disposal costs, and other existing services.

The contractor shall track the changes or impact to waste stream volumes when waste stream minimization efforts are implemented, report on the success of the affirmative procurement program and provide to the VACCHCS in a written report. The intent of this requirement is to establish waste minimization practices and Best Management Practices (BMPs) that the VACCHCS GEMS Program Manager will then implement at the service line level. This shall not be used for any single waste stream, rather it shall be used to reduce the waste at a particular facility within a service as a whole.

9. CONTRACTOR RESPONSIBILITIES:

The successful contractor will be required to provide removal services for hazardous, biological, radiological, DEA controlled substances, universal, and non-hazardous chemical wastes at the Department of Veterans Affairs, Central California Health Care System located in Fresno, California. Types of wastes generated are identified in Attachment 1. Additional wastes not listed may be added to this contract at the discretion of the VISN if such wastes are identified during the process of this contract.

- 9.1.** The Contractor is required to perform characterization of all waste streams identified by VACCHCS using process knowledge, identity of the chemicals, and/or other types of chemical analysis including but not limited to Toxicity Characteristic Leaching Procedure (TCLP). Wastes shall include but not be limited to ignitables, corrosives, poisons/toxics, reactive wastes, mixed radiological and hazardous waste, and universal waste (i.e. batteries, fluorescent lamps, mercury thermometers and blood pressure cuffs, or lead aprons). The Contractor shall obtain permission from the COR prior to conducting chemical analysis to be charged against the contract. The VA reserves the right to handle a particular waste stream outside of the scope of this contract if it can be recycled, handled or treated locally, or if the price of disposal is significantly less than provided by the offeror. Work shall be performed in accordance with all applicable, Federal, State, Local and all governing regulations. The hazardous waste stream determination will include an electronic review of the VISN pharmaceutical formulary and will provide recommendations on the appropriate disposal methods for each. This will identify all pharmaceuticals that are hazardous waste because it is listed, characteristic, or RCRA regulated waste. The review will be documented in an Access database or Excel Spreadsheet
- 9.2.** The Contractor will be responsible for the collection of hazardous and non-hazardous waste from VACCHCS. Wastes are normally collected from 24 locations throughout VACCHCS. These locations include, but are not limited to the laboratory, hematology etc. The wastes will be segregated by hazard class or chemical compatibility and labeled appropriately. Wastes will be brought to the designated MAA/CAA for final storage prior to off-site shipment. The Contractor shall be responsible to properly label each waste container according to EPA and the State requirements for the VACCHCS. Upon request, Contractor shall provide services to routinely clean MAA/CAA secondary containment trays that may have collected debris or spill material.
- 9.3.** **The Contractor will be responsible for consolidating all wastes into the most cost effective sized container and consolidation most beneficial to the Government.** The contractor shall have the capability to supply waste

collection containers of various sizes, mounting hardware, labels, foot pedal stands and labor to install if necessary.

- 9.4.** The Contractor will be responsible for properly containerizing all lab-packs and for assuming all safety measures (example: PPE) to prevent harm or injury to VA patients, visitors, employees, contractor employees and the environment (example: storm drain covers). The VACCHCS GEMS Program Manager, Safety Officer/Specialists, Industrial Hygienists, and VA Police have the authority under this contract to present a verbal “stop work order” pertaining to job activity they reasonably believe represents an imminent hazard to life, property or the environment. This verbal order shall be followed up by a written stop work order issued by the Contracting Officer (CO) as soon as feasible after the imminently hazardous situation has been stabilized or abated.
- 9.5.** Should hazardous, biological, radiological, DEA controlled substances, or universal waste be released during the performance of services under this contract, through no fault of VACCHCS, the Contractor will be responsible for all costs associated with the satisfactory remediation of the incident. This will include the cost of all labor and materials as well as any actual damages incurred to the facility and harm caused to patients, visitors and staff of the medical center. The remediation efforts shall be performed to the satisfaction of the appropriate regulatory authorities and the facility POC or COR/VACCHCS GEMS Program Manager.
- 9.6.** All hazardous and non-hazardous materials generated by VACCHCS will be disposed of by the Contractor in accordance with current Federal, State and local guidelines governing regulated hazardous and non-hazardous wastes.
- 9.6.1.** Contractor will dispose of hazardous waste in a manner that leaves no future expense potential to the VA or the federal government. Chemicals will be disposed of in the following preferred priority:
- a. Recycling of chemicals for future use.
 - b. Fuel blending or energy recovery
 - c. Incineration at a Part B permitted incineration
 - d. Treatment of the chemical waste (at a facility approved for such processing by an appropriate state or federal agency) using neutralization, stabilization or landfill in a manner that renders it no longer a hazardous waste as defined in 40 CFR.
 - e. The long-term internment (burial) in a secure landfill site approved for such by the appropriate state or federal agency.
- 9.6.2.** Acceptance of the hazardous waste at a properly permitted treatment, storage, or disposal site does not constitute disposal and/or completion of the contract. It is the prime contractor’s responsibility to obtain all necessary documentation to prove that the timely end disposal of all items has been accomplished including certificates of recycling and final disposal certificates.
- 9.6.3.** Shipments outside of this country are prohibited under this contract (unless prior approval is received in writing from the VISN GEMS Program Manager).
- 9.6.4.** The records involving the transfer or destruction of controlled substances must be retained for at least two years for inspection and copying by the DEA. To transfer Schedule II substances, the receiving registrant must issue and Official Order Form (DEA Form-222, Official Forms-Schedule I & II) to the registrant transferring the drugs. The transfer of Schedule III-V controlled substances must be documented in writing to show the drug name, dosage form, strength, quantity and date transferred. The document must include the names, addresses and DEA registration numbers of the parties involved in the transfer of controlled substances.

10. CONTRACTOR FURNISHED MATERIALS AND EQUIPMENT:

The Contractor will furnish all containers and packing material for lab packs at no additional cost to the government. The contractor is required to have and submit as part of the submittal package a written affirmative procurement program that requires preference for the following materials used at VA sites:

- a. EPA designated items listed in EPA procurement guidelines at 40 CFR part 247
- b. USDA designated items listed by USDA in the procurement guidelines found in 7 CFR part 2902, Subpart B
- c. EPA designated items on EPA's Comprehensive Procurement Guidelines

The contractor may, on occasion, be requested to furnish other waste storage containers (e.g., for bulk wastes). Contractor shall provide a list of containers and pricing with their proposal. Should the government require this service, contractor shall invoice the container in accordance with list submitted with their pricing proposal. The contractor will provide at the quarterly meeting with the VISN 21 GEMS Program Manager a quarterly report submitted within 30 days of the end of the quarter, the amounts of waste recycled or disposed of, the costs to the contract by contract line item, the percentage of recovered materials content for EPA designated items that were utilized in the performance of this contract and a report on the use of biobased products in the performance of this contract

11. LICENSES AND PERMITS:

The Contractor will, without additional cost to the Government, provide and maintain all licenses and permits for operational personnel, trailers, containers, vehicles and other resources required for proper removal of hazardous and non-hazardous chemical waste in accordance with all applicable Federal, State, Municipal, and local regulations (e.g. OSHA, DEA, EPA, DEP, 49 CFR (DOT)). If appropriate licenses are not maintained in accordance with Federal and State requirements, the VA may terminate the contract effective upon discovery. The VA reserves the right to halt work if the CO and/or COR determine work is being done in an unsafe/unhealthy manner or that could harm the environment. VA will not incur additional costs if work is halted for good cause.

The following shall be provided to the Contracting Officer with bid proposal submission for evaluation purposes and annually (September 1st) with any changes to original submission clearly identified and highlighted:

11.1 Current waste transporter permit(s)

11.2 List of all transfer stations, TSDFs including incineration, wastewater and sludge treatment facilities that shall be utilized during this contract to include the capacity of these facilities and the waste codes for the waste streams they are permitted to accept by treatment technology. Address, phone number, EPA identification number and other contact information shall be provided. If required, the contractor must be granted the Special Permit by the DOT for the transportation for disposal of Ebola contaminated material.

The VA reserves the right to inspect each of these facilities before approving its use or at any time prior to, during or after contract period.

11.3 Copy of Operator permit(s)

11.4 Certificates of training, job description and experience of staff and/or personnel who will perform site work under this contract (all technicians that will work on VA premises will be expected to have received at least the minimum training required by law as specified state requirements and in 29CFR 1910.120, 40 CFR Parts 260-265 and 49 CFR Parts 171-178 and site specific training by existing personnel and or project manager prior to working at each site. Facility shall be provided an up-to-date log book of all personnel that are authorized to work at that site and shall be notified of any changes to personnel a minimum of two weeks prior to their visit. Prior to each visit, the estimated hours and the number and type of personnel required for each task order will be approved by the facility.

11.5 Provide the contractor's experience in hazardous waste packaging, transport and disposal. Provide details of contracts of similar nature and similar size, particularly in regards to hospitals and universities. Provide a copy of

waste minimization audits that the contractor has successfully conducted and examples of waste minimization opportunities realized.

11.6 Provide a copy of US EPA identification number(s) and certificate for each business entity operated by or that will have wastes shipped to, that the contractor that will use to provide service regarding any aspect of the VA waste disposal program (i.e. storage, transfer, and/or incinerator sites).

11.7 Provided a copy of certificate of registration with the State EPA as a hazardous waste hauler for each business entity owned or operated by the contractor that will provide hazardous waste transportation services for any aspect of VA waste disposal program.

11.8 Provide written acknowledgement of responsibility for acquisition of all applicable business licenses and permits required by law. Contractor shall certify that it acknowledges and is in possession of all required business licenses and permits.

11.9 Provide a list of any violations and/or citations that the contractor has received for non-compliance with any hazardous waste laws, permit requirements, and/or OSHA requirements for the past three years from the date of submission for each site that may handle or manage VA waste. Contractor shall include information on all related business entities including associated firms that are owned by the contractor or owned by a common parent company that will be involved in any portion of the processing of VA waste disposal program. If no discharge or violations have occurred, contractor must provide a statement that certifies no discharges or violations have occurred.

11.10 Provide a plan describing Standard Operating Procedures (SOPs) that will be followed while conducting normal hazardous waste management activities. The contractor shall describe the following;

1. Site safety and contingency procedures (e.g. spill management)
2. Operational procedures and site management structure
3. Supplies and equipment practices
4. Material sampling procedures
5. Hazard assessment and categorization procedures
6. Packing procedures
7. Quality assurance and quality control procedures to ensure materials are properly identified, categorized, and packaged, and paperwork is properly completed
8. Procedures for gaining waste acceptance into a TSDF
9. Contractor and project management procedures
10. Written affirmative procurement program
11. Security program for on site operations
12. Environmental Management System

11.11 Provide the following information regarding the hazardous waste fleet owned and operated by the contractor:

1. Basic description of transportation services offered and capabilities
2. Fleet description of number, types and ages of vehicles
3. Description of service and maintenance programs
4. Types of materials licensed to haul
5. Latest DOT or MCS rating (include a copy of the last inspection)
6. The DOT/CHP compliance record
7. Description of driver qualifications including training programs and experience
8. Provide evidence that background checks have been performed on all employees that will perform any duties under this contract
9. The usage of any alternative fueled vehicles and or use of alternative fuels
10. Prohibition of idling procedures

11.12 Provide the following information on the contractor's emergency response (ER) capabilities (or any changes to original submission):

1. Contractor's ER policies
2. ER capabilities and experience and limitations
3. Type of ER equipment maintained (specify if owned or subcontracted and from whom)
4. Personnel availability, training and experience
5. Contractor's emergency response procedure shall describe:
 - a. How to request an emergency response
 - b. How the contractor notifies personnel and initiates response action
 - c. Incident command procedures followed by the contractor
 - d. ER work practices
 - e. ER protection of health and safety practices
 - f. ER invoicing policy

11.13 Provide a detailed site safety plan and Environmental Protection Plan that will be used to ensure that workers and nearby population will be adequately protected during packaging and removal operations.

11.14 The Government must approve of all subcontractors prior to the contract award. Offerors shall identify all services to be performed by subcontractors. 50% of the performance is required from the Prime as required by subcontracting clause 52.219-14. Provide information identifying any proposed subcontractors and identifying services to be performed by the subcontractors. Contractor must submit evidence that subcontractor is qualified and legally able to provide services.

11.15 Provide a list of names, titles, addresses, telephone numbers (including cellular), pager/beeper numbers, facsimile numbers and e-mail addresses of key managers, supervisors, customer service and field service personnel performing under this contract.

11.16 Provide written SOPs for the collection, handling, accumulation, sampling, lab testing, characterization, packing and shipping of hazardous, universal and non-hazardous wastes.

11.17 Provide a primary and alternate point of contact for each Medical Center.

11.18 Provide a certificate of all appropriate insurance

12. DOCUMENTATION:

12.1. The Contractor is required to comply with all Federal, State and local regulations, policies and procedures regarding tracking, record keeping, manifesting and documentation of all hazardous, non-hazardous, universal and radiological wastes. The contractor will be required to comply with all changes to such Federal, State and local regulations and procedures which occur during the term of this contract. The Contractor will provide to the Government any additional certifications that may be required due to changes in such laws.

12.2. The Contractor will provide all manifests, land bans (LDRs), certificates of destruction and recycling, and documentation that apply to the removal and disposal of hazardous, non-hazardous, universal and radiological waste activities conducted by its workforces and/or its subcontractors. The Contractor will furnish a properly executed and legible copy of the appropriate manifests required to document the safe shipment and proper disposal of hazardous, non-hazardous and universal wastes generated by the Government under the terms of this contract.

12.3. Prior to the removal and transport of hazardous, non-hazardous and universal wastes generated by the VA, the Contractor will obtain approval and signature for each manifest from the VA Facility's CO Representative or his/her designee verifying that the Contractor has accepted the waste from the VA and that the waste was properly shipped for treatment or disposal. Manifests not signed by the CO Representative or his/her designee will not be

deemed valid. The Generator Copy, Generator State Copy and Destination State Copy of the executed manifest will be provided to the VA Facility COR, GEMS Program Manager or the Safety Office before the removal of any waste from facility (signed manifest will be provided to the facility within 30 days). The “Generator’s Initial Copy” of the Uniform Hazardous Waste Manifest provided to the VA facility shall be of a high legible quality.

- 12.4. In addition to providing the manifests, the Contractor will provide a properly executed and signed disposal certificate for each manifest to the VA COR within ninety (90) calendar days of removal of waste from this facility. The disposal certificate will clearly indicate that all waste has been properly disposed of and will specify the site and date of disposal or incineration (90 day requirement). Exceptions to this must be approved by the COR and/or VISN representative.
- 12.5. All manifests, waste determinations, waste generation data, shipping information and other data required for the proper execution of this contract will be maintained by the contractor in an electronic database format that is exportable through a Microsoft Excel or Microsoft Access format. This system should enable tracking of generator status, generate monthly, quarterly or annual reports and enable tracking of compliance dates.
- 12.6. Removal of the hazardous, non-hazardous, universal and radiological wastes will be normally performed during the hours of 8:00 AM and 4:00 PM, Monday through Friday, excluding National Holidays. The COR or designee is available during those hours for the approval of manifests and other required documentation, unless exigent circumstances require services during an unscheduled time period.
- 12.7. A monthly report will be provided to the VISN 21 GEMS Program Manager which will identify types and amounts of wastes shipped from each facility and a breakdown of the costs of services and the specific services provided to each facility in the previous month.
- 12.8. Quarterly waste minimization audit reports and affirmative procurement purchases will be provided to the VISN 21 GEMS Program Manager within 30 days of the end of the quarter, documenting all waste minimization activities conducted during the period, if any.
- 12.9. Contractor shall provide daily timesheets for onsite work performed at each VA. Work may include weekly satellite accumulation area pickups, routine waste shipments or emergency response activities. Timesheets will include hours for travel time to and from the VA location, onsite time and any supplies utilized during the service call.

13. Capability Requirements:

- 13.1. Contractor representatives who perform services under this contract must be competent, experienced and qualified to perform such services listed herein. All work performed will be first class in accordance with established good waste management practices. The Contractor shall submit proof of appropriate training and experience for vendor personnel performing services under this contract.
- 13.2. It is the intent of this contract to have a regular pick up on either a weekly, monthly, bi-monthly or quarterly basis schedule depending on the facility. The responsible COR or his/her designee shall notify the Contractor of the necessity for the pick up for unusual circumstances outside of the normal schedule. The Contractor must coordinate all pickups with the facility COR. The Contractor will be required to pick up waste within seven (7) calendar days of telephonic notification by government representatives or must be able to respond within 2 hours in the event of a spill or other emergency with the exception of the CBOCs.
- 13.3. The Government requires services on a recurring basis. There shall be no penalty or additional costs incurred should a medical center or CBOC require more or less than the estimated pickups or disposal volume outlined in the schedule of costs.

14. DEFINITIONS :

- 14.1. **Contract Working Hours:** The period of performance by the contractor which services shall be performed within the contract scope. The minimum coverage for which the Government will accept is defined as "8:00 AM through 4:00 PM, Monday through Friday, excluding National Holidays."
- 14.2. **CO - Contracting Officer:** The person with the authority to enter into, administer, and/or terminate contracts, and make related determinations and findings, including changes within the original contract scope, on behalf of the Department of Veterans Affairs. The CO has the overall responsibility for administration of this contract to amend, modify or deviate from the contract terms, conditions, requirements, specifications, details and/or schedules. However, the CO may delegate certain other responsibilities to authorized representatives.
- 14.3. **COR - Contracting Officer Representative.** Any person(s) designated in writing by the CO to act for the CO within the limits of the delegated authority. Under this contract, the COR shall be the VA person at each facility who is qualified to render advice and assistance to the contractor's service personnel. The COR shall also be responsible for certifying that services performed have been satisfactorily rendered in accordance with contract terms. The COR shall assist the CO in the discharge of the work. The responsibilities of the COR include, but are not limited to: determining the adequacy of performance by the contractor in accordance with the terms and conditions of the contract; acting as the government representative in charge of the work on site; ensuring compliance with the contract requirements insofar as work is concerned; and advising the CO of any factors which could cause delay in performance of the work
- 14.4. **Contractor Service Representative:** Authorized service representative(s) of the Contractor who have been provided by the Contractor to the VA in writing for the purpose of coordination and performance of service.

15. Identification, Check-in, Parking, and Smoking Regulations:

The vendor's employees shall wear visible identification at all times while on VA premises. Contractor employees shall report to the facility COR or designee's office once on campus prior to commencement of any work. During off-hours emergency response activities contractor personnel should check in with VA Police if the VA COR or designee is not available. Smoking is prohibited inside any buildings at the VA. Possession of weapons or contraband is prohibited and shall subject contractor employee to arrest and termination from future performance under this contract. Enclosed containers, including tool kits, shall be subject to search. Violations of VA regulations may result in citation answerable in the United States (Federal) District Court, not a local district, state, or municipal court.

16. Invoices and Payment.

All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests. Please go to this website: <http://www.tungsten-network.com/US/en/veterans-affairs/>. Invoices shall reference the Contract Number and Purchase Order Number, Manifest Number(s), provide a complete and accurate description of services/ supplies delivered/ rendered, including dates of performance, amounts, unit prices, extended totals and any other data relevant for payment purposes.

A copy of the invoice will be submitted to Tungsten and evaluated by the COR. The Government shall not authorize payment until such time that the VA COR receives all properly executed and signed documentation.

NOTE: ANY ADDITIONAL CHARGES CLAIMED MUST BE APPROVED BY THE CO IN WRITING BEFORE SERVICE IS COMPLETED!

17. Safety Requirements

In the performance of this contract, the Contractor shall take such safety precautions as the CO or his/her designee may determine to be reasonably necessary to protect the lives and health of VA patients, visitors, staff and the general public. The CO or his/her designee will notify the Contractor of any noncompliance with the foregoing provisions as well as the recommended corrective action. The Contractor shall, after receipt of such notice, immediately correct the conditions to which attention has been directed. Such notice, when served in person on the Contractor or his/her representative at the

site of work, or telephonically to Contractor's designated representative, shall be deemed sufficient for the purpose of the previously mentioned. If the Contractor fails or refuses to comply promptly to satisfactorily abate the hazardous condition or situation, the CO may issue an order stopping all or any part of the work and hold the Contractor in material breach of this contract.

18. Delivery Schedule

Performance Objective	Standard	PWS Paragraph	Performance Threshold Maximum Allowable Degree of deviation requirement	Method of Surveillance
1. Training	Provides annual Resource Conservation and Recovery Act (RCRA), HAZWOPER and DOT initial and refresher trainings	Paragraph 2.1	Immediate response to requests for training	Request from COR.
2. Emergency Response	Emergency response services twenty-four hours a day, seven days a week.	Paragraph 5.1-5.3	Responds within two hours.	Request from COR
3. Recordkeeping /Reports	Provides a report on all hazardous waste tracking that can be exported to Excel spreadsheet. Will include waste characterizations and determination, copy of each hazardous waste manifest and bill of lading for each hazardous waste report.	Paragraph 6	Provides 100% of required documentation for waste tracking on a monthly basis.	Observed by the COR
4. Inspections	Provide weekly/monthly inspections and movement of wastes	Paragraph 7	Provides inspections for SAA locations ensuring compliance with State and EPA standards. Provides documentation of deficiencies and	Observed by the COR

Attachment 1 – List of Locations

	Building & Floor	Address	Area Name	Room Number	Type
1	Bldg. 1, 1st Floor	2615 E. Clinton Ave Fresno, CA 93703	Primary Care	1C-2C3	D/U, P-Listed
2	Bldg. 1, 1st Floor	2615 E. Clinton Ave Fresno, CA 93703	Pharmacy	1B06	D/U, P-Listed
3	Bldg. 1, 2nd Floor	2615 E. Clinton Ave Fresno, CA 93703	Histology/Cytology Lab	W258	Methanol, Xylene
4	Bldg. 1, 2nd Floor	2615 E. Clinton Ave Fresno, CA 93703	Laboratory	2B24	Covid Cartridges, Methanol
5	Bldg. 1, 2nd Floor	2615 E. Clinton Ave Fresno, CA 93703	Ambulatory Infusion Clinic	2C06K	D/U
6	Bldg. 1, 3rd Floor	2615 E. Clinton Ave Fresno, CA 93703	Samy Day Procedures	SO352	P-Listed
7	Bldg. 1, 3rd Floor	2615 E. Clinton Ave Fresno, CA 93703	Operating Suite	W303	D/U, P-Listed
8	Bldg. 1, 4 East Wing	2615 E. Clinton Ave Fresno, CA 93703	Specialty Clinics	Exam Rooms	Nitrate Stick Container
9	Bldg. 1, 4 East Wing	2615 E. Clinton Ave Fresno, CA 93703	Women's Health	Exam Rooms	D/U, P-Listed
10	Bldg. 1, 4 West Wing	2615 E. Clinton Ave Fresno, CA 93703	Specialty Clinics	W432	D/U, Nitrate Stick Container
11	Bldg. 1, 5 East Wing	2615 E. Clinton Ave Fresno, CA 93703	Med/Surge Wards	E538	D/U, P-Listed
12	Bldg. 1, 5 West Wing	2615 E. Clinton Ave Fresno, CA 93703	ICU	W545	D/U, P-Listed
13	Bldg. 1, 6 East Wing	2615 E. Clinton Ave Fresno, CA 93703	Inpatient Psych. Unit	E606	D/U
14	Bldg. 1, 7th Floor	2615 E. Clinton Ave Fresno, CA 93703	Pulmonary/Sleep Lab	7A01E	D/U, P-Listed
15	Bldg. 1, Basement	2615 E. Clinton Ave Fresno, CA 93703	Emergency Room	SO29	D/U
16	Bldg. 31	2615 E. Clinton Ave Fresno, CA 93703	CLC	133	D/U, P-Listed
17	Bldg. 31	2615 E. Clinton Ave Fresno, CA 93703	CLC	1A02	D/U, P-Listed
18	Bldg. 28	2615 E. Clinton Ave Fresno, CA 93703	Dogwood (CLC)	1D10-28	D/U, P-Listed
19	Bldg. 28	2615 E. Clinton Ave Fresno, CA 93703	ELM	1E028	D/U, P-Listed
20	South Valley CBOC	500 N. Santa Fe Street, Visalia CA 93292	CBOC	Exam Rooms (As needed)	D/U, P-Listed
21	Merced CBOC	340 E Yosemite Ave, Merced CA 95340	CBOC	Exam Rooms (As needed)	D/U, P-Listed
22	Oakhurst CBOC	40597 Westlake Dr, Oakhurst CA 93644	CBOC	Exam Rooms (As needed)	D/U, P-Listed